



8.009 Certification of Homeless, Migrants, Refugees

CFR § 246.7(n) Certification of persons in homeless facilities and institutions

I. Policy Statement

Pregnant, breastfeeding and postpartum women, infants and children who meet WIC eligibility criteria and who live in a homeless facility, shelter, or institution shall be considered eligible for the WIC Program and shall be treated equally with all other eligible applicants at the local agency where they apply for WIC benefits. Refugees without residence and income may be certified along the guidelines for certifying homeless applicants, including refugees residing with sponsors as long as the sponsor is not providing the refugee with financial support.

II. Procedures Regarding Facilities, Shelters, or Institutions that House WIC Participants

A. LAs shall take reasonable steps to:

- Establish to the extent practicable that the facility, shelter, or institution meets the following conditions with respect to resident WIC participants:
 - i. The facility, shelter, or institution does not accrue financial or in-kind benefit from a person's participation in the Program
 - ii. Foods provided by the WIC Program are not included in a communal food service, but are available exclusively to the WIC participant for whom they were issued
 - iii. The facility, shelter, or institution places no constraints on the ability of the participant to partake of the supplemental foods and nutrition education made available by the Program
- Contact the facility, shelter, or institution periodically to ensure continued compliance with these conditions
- Request the facility, shelter, or institution to notify the State or Local Agency if it ceases to meet any of these conditions

B. LA staff shall inform participants who reside in facilities, shelters, or institutions that WIC food:

- Must only be consumed by the participant;
- Must not be used by any other residents, and
- Must not be stored in the facility or institution's general storage area

C. LAs shall attempt to establish, to the best of its ability, whether a facility, shelter, or institution complies with the conditions set forth above with respect to the WIC participants.

D. If a homeless facility or institution has been determined to be non-compliant during the course of a participant's initial certification period, participants applying for continued benefits may be certified again but LA staff shall not issue WIC food benefits except infant formula until the accommodation's compliance is achieved or alternative shelter arrangements are made. If certified, such participants



shall continue to be eligible to receive all other WIC benefits, such as nutrition education and health care referral services.

- E. Upon determination that a facility, shelter, or institution does not meet the conditions set forth above, LA staff shall refer all participants using such accommodation to any other accommodations in the area which meet these conditions.
- F. The State Agency will notify LAs if it becomes aware that a facility, shelter, or institution does not comply with the conditions set forth above.
- G. Correspondence from a facility, shelter, or institution shall be accepted as proof of residency.
- H. LA Staff shall use the HANDS codes “does not exist” for proof of residency, identification, and/or if the homeless, migrant or refugee applicant cannot produce documentation. See policies 8.002 to 8.007 for more information on intake documentation.
- I. LA Staff are not required to document a nutritional risk for homeless, migrant, or refugee applicants other than the risk code for homelessness (801).
- J. LA Staff shall consider the cooking and storage capabilities of facilities, shelters, or institutions when prescribing supplemental foods and may tailor the food prescription as needed.
- K. LA staff must instruct the AR(s) of infants residing in facilities, shelters, or institutions regarding sanitary procedures to use in formula preparation and storage.